

M/s Maa Kaila Devi Sheetgarh Kukthari Pinaphat v. State of U.P.

Allahabad High Court · Division Bench · 25 March 2021 · WRIT - C No. - 8413 of 2021 · **Writ disposed; Executive Engineer to consider Clause 6.14 installments with sympathetic Covid-19 relaxation; demand notice subject to that decision.**

HEADNOTE

A cold-storage consumer challenged a 7 November 2020 electricity demand, pleading inability to pay after Covid-19 closure. The High Court disposed of the writ by directing the Executive Engineer to consider a Clause 6.14 installment request with adequate relaxation and sympathetic regard to pandemic distress, to refer the matter to a higher authority if his power is limited, and to decide in accordance with law within four weeks; the demand notice to remain subject to that decision.

FACTUAL SUMMARY

The petitioner, running a cold storage, challenged a demand notice dated 7 November 2020 for electricity charges. Counsel submitted that the unit had closed during the Covid-19 pandemic and could not be revived after lockdown, leaving dues unpaid from March 2020. The petitioner offered to pay in easy installments. Counsel for the licensee stated that the Executive Engineer could fix installments under Clause 6.14 of the Uttar Pradesh Electricity Supply Code, 2005. The petitioner contended that that power was limited and might not yield adequate relief.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity arrears

HOLDING

The Executive Engineer is directed to consider the consumer's prayer for fixation of electricity-dues installments under Clause 6.14, granting adequate relaxation and sufficient time with sympathetic consideration of Covid-19 economic distress; if the Engineer's power is limited, the matter may be referred to the higher authority; a decision in accordance with law is to be taken preferably within four weeks; the demand notice dated 7 November 2020 remains subject to that fresh decision. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated Clause 6.14 as the provision under which the Executive Engineer may consider and fix installments of electricity dues, and disposed of the writ by directing that consideration rather than itself granting a schedule. ¶ 1

instalment-facility-clause-6.14-for-financial-distress Covid-19 closure of the petitioner's cold storage and continuing inability to pay dues after March 2020 were treated as financial distress warranting sympathetic consideration and adequate relaxation while fixing Clause 6.14 installments, with upward reference if the Engineer's power is limited. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.14 LIMITS THE EXECUTIVE ENGINEER'S POWER TO FIX INSTALLMENTS

The Court did not construe the alleged limitation; it directed that if the Engineer finds his power limited, he may refer the matter to the higher authority. ¶ 1

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 7 NOVEMBER 2020

The notice was left subject to the fresh Clause 6.14 decision; no finding on liability or quantum. ¶ 1

